



## CHAPTER lxxiv.

An Act to confirm a Provisional Order under the Burgh Police (Scotland) Act 1892 relating to Paisley Gas. A.D. 1910.  
[3rd August 1910.]

**W**HEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Burgh Police (Scotland) Act 1892 and it is requisite that the said Order should be confirmed by Parliament: 55 & 56 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Paisley Gas Order Confirmation Act 1910. Short title.



A.D. 1910.

## SCHEDULE

---

### PAISLEY GAS.

#### *Provisional Order.*

WHEREAS by the Burgh Police (Scotland) Act 1892 it is (inter alia) provided (section 45) that whenever it shall appear to the commissioners of any burgh to which that Act applies that they require additional powers for the better carrying out of the purposes of that Act and specially powers relating to the supply of gas or water or to the roads and streets or to drainage or sewers or the utilisation of sewage in addition to the powers conferred by the Public Health Acts or for the repeal or amendment of any local Acts of Parliament relating to such subjects or their adaptation and adjustment to the provisions of the Act now in recital or for the other purposes therein mentioned they may apply to the Secretary for Scotland for a Provisional Order and (section 46) that after such inquiry as the Secretary for Scotland may direct it shall be lawful for him to issue a Provisional Order either in accordance with the prayer of the application or with such modifications or alterations as may appear to him requisite but no Provisional Order shall be of any validity unless the same has been confirmed by Act of Parliament:

And whereas the Burgh Police (Scotland) Act 1892 is in force within the burgh of Paisley and the powers authorities and duties of the commissioners under that Act within the said burgh are now vested in and imposed on the provost magistrates and councillors thereof (herein-after called "the Town Council"):

And whereas by the Paisley Corporation Gas Act 1870 (herein-after called "the Act of 1870") the property powers rights and privileges of the board of commissioners in whom the gas supply of the said burgh of Paisley was then vested were transferred to and vested in the Town Council and the Town Council were authorised to maintain improve extend and renew the gasworks thereby transferred to and vested in them and to supply gas to the said burgh and the suburbs thereof and places adjacent and were empowered to borrow for the purpose of carrying the Act of 1870 into execution any sum not exceeding the sum of fifteen thousand pounds on the security of



the rents charges and revenues accruing to them from the lands property and works transferred to and vested in them by the Act of 1870 and thereafter to be acquired or constructed by them for the purposes of that Act and from the sale of gas and residual products :

A.D. 1910.  
—

And whereas the borrowing powers of the Town Council under the Act of 1870 have from time to time been increased as follows that is to say by the General Police and Improvement (Scotland) Act 1862 Order Confirmation (Paisley) Act 1879 to the sum of forty-five thousand pounds by the Paisley Corporation Gas Order Confirmation Act 1899 (herein-after called "the Order of 1899") to the sum of seventy thousand pounds by the Paisley Gas Order 1900 to the sum of one hundred and fifty thousand pounds by the Paisley Gas Order 1901 to the sum of one hundred and seventy-five thousand pounds by the Paisley Gas Order 1902 to the sum of two hundred and five thousand pounds and by the Paisley Gas and Water Order 1906 (herein-after called "the Order of 1906") to the sum of three hundred thousand pounds but of such sums the sum of one hundred and fifteen thousand pounds only has been borrowed for the purposes of the Act of 1870 the residue having been borrowed for the purposes of the Paisley Electric Lighting Order 1891 with the consent of the Secretary for Scotland :

And whereas the Town Council have also borrowed for the purposes of the last-mentioned Order with the consent of the Secretary for Scotland in terms of the Electric Lighting Act 1882 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 the further sum of twenty-five thousand pounds on the security of the rents charges and revenue accruing to them under the Act of 1870 the total amount borrowed on such security thus amounting to the sum of three hundred and twenty-five thousand pounds :

And whereas the said sum of one hundred and fifteen thousand pounds has been duly expended by the Town Council for the purposes of their gas undertaking :

And whereas the demand for gas in Paisley and the suburbs thereof has increased and is increasing and in order to meet such demand the Town Council require to further extend and improve their gasworks and to provide additional apparatus and appliances for the distribution and use of gas and in order to defray the cost thereof it is necessary and expedient that powers should be conferred on the Town Council to borrow additional money to the extent of sixty thousand pounds :

And whereas the Town Council have presented to me as Secretary for Scotland a petition setting forth the matters herein-before recited :



[Ch. lxxiv.] *Paisley Gas Order Confirmation* [10 EDW. 7 &  
Act, 1910. 1 GEO. 5.]

A.D. 1910. — And whereas after due inquiry I have resolved to issue a Provisional Order in the terms herein-after expressed :

Now therefore in pursuance of the powers vested in me by the Burgh Police (Scotland) Act 1892 I as Secretary for Scotland do by this Provisional Order direct as follows :—

Power to borrow.

1. In addition to the sum of three hundred and twenty-five thousand pounds which the Town Council are already authorised to borrow on the security of the rents charges and revenue accruing to them under the Act of 1870 the Town Council may borrow on such security the further sum of sixty thousand pounds and from and after the passing of the Act confirming this Order section 64 of the Act of 1870 as amended by the Order of 1906 shall be read as if the words “three hundred and eighty-five thousand pounds” had been inserted therein instead of the amended words “three hundred thousand pounds.”

Application of borrowed money.

2. All moneys borrowed under the authority of this Order shall be applied only for the purpose of constructing and providing the several gasworks and apparatus for the distribution and use of gas specified in the schedule to this Order and all works necessary for the proper working and use of the same and in payment of the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order.

Priority of existing mortgages &c.

3. All mortgages granted by the Town Council for securing money borrowed for the purposes of the Act of 1870 or of the said Paisley Electric Lighting Order 1891 and subsisting at the passing of the Act confirming this Order shall while subsisting and without prejudice to their priorities inter se have priority over any mortgages granted by the Town Council under the authority of this Order.

Contingency and depreciation of works fund.

4.—(1) It shall be lawful for the Town Council and they are hereby required as from and after the fifteenth day of May nineteen hundred and ten to set apart annually as a contingency and depreciation of works fund the following sums viz. :—

(A) In the year ending on the fifteenth day of May nineteen hundred and eleven a sum of not less than two thousand four hundred pounds :

(B) In each succeeding year a sum not less than a sum bearing to the said sum of two thousand four hundred pounds the same ratio as the number of cubic feet of gas sold by the Town Council in such year bears to the number of cubic feet of gas sold by them in the year ending on the said fifteenth day of May nineteen hundred and eleven and the sums so set apart shall until applied for one or other of



the purposes herein-after mentioned be invested in securities in which trustees are by law for the time being authorised to invest the Town Council being at liberty from time to time to vary and transpose such investments and pending such investment the said sums may be lodged in bank on deposit receipt. A.D. 1910.  
—

(2) The Town Council shall from time to time apply the fund formed in terms of the immediately preceding subsection together with any accumulation of interest thereon in payment of the cost of extending their gasworks mains and pipes or of any extraordinary repairs thereof or of enlarging and renewing or increasing the number of their mains and pipes or in meeting any extraordinary contingency liability or claim which may arise or may be incurred in respect of their gasworks or gas undertaking:

Provided that the said fund shall not be applied in defraying the cost of renewing meters or gas stoves.

(3) Section 3 (Contingency and depreciation of works fund) of the Order of 1906 is hereby repealed as from the fifteenth day of May nineteen hundred and ten.

5. The Town Council shall pay off all money borrowed under the authority of this Order within forty years from the date or dates of borrowing the same and the provisions of section 3 of the Order of 1899 shall apply to money borrowed under the authority of this Order as if it were money borrowed under the authority of the Order of 1899 Provided that the payments into the sinking fund on account of any loan for paying the costs charges and expenses of this Order shall be sufficient to pay off such loan within five years from the passing of the Act confirming this Order. Repayment of borrowed money.

6. This Order may be cited as the Paisley Gas Order 1910. Short title.

Given under my hand and seal at Whitehall this sixth day of July one thousand nine hundred and ten.

(L.S.)

PENTLAND.



A.D. 1910.

SCHEDULE.

GASWORKS AND APPARATUS REFERRED TO IN THE FOREGOING ORDER.

New retort house and bench of eighty retorts.  
Six thirty-two-ton coal bunkers and conveyors.  
Additional ammonia still and condenser.  
Extension of coal stores with railway on columns.  
Extension of sixteen-inch and fourteen-inch gas mains to Glasgow Road.  
New workshops at works.  
Additional exhausters.  
Additional section to Holms' washer.  
Carburetted water gas plant.  
Two additional purifiers and connexions.  
Main pipes cooking stoves and meters.

Printed by EYRE and SPOTTISWOODE, Ltd.,  
FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from  
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or  
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or  
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.